

IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH, COURT-III

(IB)-281(ND)/2025

Under Section 59(7) of the Insolvency and Bankruptcy Code, 2016 read with Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017

IN THE MATTER OF:

M/S. MEDBAY PRIVATE LIMITED

Having Its Office Registered At:

30, Malka Ganj, 30 UA,

Jawahar Nagar, New Delhi, Delhi, India – 110007

CIN: U74999DL2015PTC288081

Through Its Voluntary Liquidator

Mr. Damodar Prasad Gupta

IBBI Registration No. – IBBI/IPA-002/IP-N00997/2020-2021/13223

...APPLICANT

Order Pronounced On: 04.09.2025

CORAM:

SHRI BACHU VENKAT BALARAM DAS,

MEMBER (JUDICIAL)

DR. SANJEEV RANJAN,

MEMBER (TECHNICAL)

APPEARANCES:

For the Liquidator : Ms. Swati Kurhatia, Kunal Surhatia, Advs.

For RoC : Mr. Chetna Kandpal, Company Prosecutor

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ORDER:

PER: DR. SANJEEV RANJAN, MEMBER (TECHNICAL)

1. The present Application has been filed by Mr. Damodar Prasad Gupta (Voluntary Liquidator of M/s. Medbay Private Limited) before this Adjudicating Authority under Section 59(7) of the Insolvency & Bankruptcy Code, 2016 (“IBC” or “the Code”) read with Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017, (“Voluntary Liquidation Regulations”). The Applicant seeks the following reliefs:

“(a) Pass an Order for dissolution of the Company, and/ or;

(b) Pass such other Order(s) as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the present case”

BRIEF BACKGROUND OF THE APPLICANT:

2. M/s. Medbay Private Limited (hereinafter referred to as “Applicant Company”) was incorporated on 02.12.2015, as a Company Limited by Shares (Non-government Company) having CIN: U74999DL2015PTC288081, under the erstwhile Companies Act, 1956 with the Registrar of Companies, NCT of Delhi and Haryana. The Authorised Share Capital of the Applicant Company as on the Voluntary Liquidation Commencement date was Rs. 83,00,000/-. The Issued and Paid-up Share Capital of the Applicant Company as on the Voluntary Liquidation Commencement date was Rs. 26,04,690/-. The Registered Address of the Applicant Company is 30, Malka Ganj, 30 UA, Jawahar Nagar, New Delhi, Delhi, India, 110007. Therefore, this Bench has jurisdiction to deal with this Application.
3. The main objects of the Applicant Company as set out in the Memorandum of Association (“MoA”) are as follows:

“1. To establish and run health portal, web sites, medical transcription centers, data processing/computer centers, retail chains, e-commerce, and to offer wholesale, retail, ecommerce facilities, health constancy and data processing and other services that are normally offered by health portal, web sites, medical transcription centers, data processing/computer centers, retail chains, etc. to hospitals, clinics, nursing homes, dispensaries, maternity homes, child welfare and family planning centers, diagnostic centers, scan centers, pathological testing laboratories, medical institutions in India and abroad or elsewhere in the world.

2. To carry on the business of providing solutions and services related to Web-Technologies, Internet and E-commerce, including to design, develop, maintain, operate, own, establish, install, host, provide, create, facilitate, supply, sale, purchase, licence or otherwise deal in Internet portals, Internet networks, Media Portals, Internet solutions, Internet gateways, Internet service providers, E-commerce, Web-site designing, Web based and Web enabled services and applications, Ecommerce service provider, E-commerce solutions, E-commerce platforms, E-commerce education, E-commerce technologies and E-business solutions to hospitals, clinics, nursing homes, dispensaries, maternity homes, child welfare and family planning centers, diagnostic centers, scan centers, pathological testing laboratories, medical institutions in India and abroad or elsewhere in the world.”

A copy of the Memorandum and Articles of Association and extract of Master data from the MCA Website are filed along with the Application.

SUBMISSIONS OF THE APPLICANT:

4. The Applicant submitted that due to lack of business opportunities and the impact of the Covid-19 pandemic, the investors withdrew support, and the operations of the Applicant Company ceased during the F.Y. 2020-21, and considering that there were no prospects of any new business opportunities, the management, though continuing to comply with annual statutory filings with the Registrar of Companies, found it

imprudent to continue the operations any further, and therefore the shareholders of the Company unanimously resolved and approved the voluntary liquidation of the Company.

5. The Applicant submitted that the Board of Directors of the Applicant Company, in its duly convened meeting held on 14.02.2023, after due consideration, resolved to initiate the Voluntary Liquidation of the Applicant Company under the provisions of Section 59 of the Insolvency and Bankruptcy Code, 2016 read with the Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017. The Board further resolved to convene an Extra Ordinary General Meeting of the members of the Applicant Company, for the purpose of obtaining members' approval for the said Voluntary Liquidation and for the appointment of Mr. Damodar Prasad Gupta, Insolvency Professional, as the Liquidator.
6. The Applicant submitted that, pursuant to the aforesaid Board resolution, an Extra Ordinary General Meeting was duly convened and held on 13.03.2023, wherein a Special Resolution was passed approving the Voluntary Liquidation of the Applicant Company and the appointment of the Resolution Professional, Mr. Damodar Prasad Gupta as the Voluntary Liquidator.
7. The Directors of the Applicant Company, Vikas Aggarwal and Dulari Devi in compliance with the provisions of Section 59(3)(a) of the Insolvency and Bankruptcy Code, 2016, made and executed Declarations of Solvency on 14.02.2023. A certified copy of the Special Resolution, together with the audited financial statements and records of business operations of the Applicant Company for the preceding two financial years, as well as the Declaration of Solvency are annexed hereto and form part of the present Application.
8. In terms of Regulation 14(3)(a) of Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulation, 2017, the Public

Announcement was made by the Voluntary Liquidator on 15.03.2023 in the newspapers namely “Janasatta”, Hindi newspaper and “Financial Express”, English newspaper and made an intimation to the IBBI.

9. That in compliance with Section 117 of the Companies Act, 2013, the Liquidator filed the aforesaid Special Resolution with the Registrar of Companies vide E-Form MGT-14 (SRN No. AA1643541) on 18.03.2023. Additionally, in compliance of Section 178 of the Income Tax Act, 1961, the Liquidator intimated the jurisdictional assessing officer vide letter dated 20.03.2023 regarding the commencement of Liquidation proceedings of the Applicant Company. Further, the Liquidator also notified the Goods and Services Tax (GST) Department through his letter dated 05.06.2023, followed by a subsequent communication dated 12.12.2023.
10. The Applicant submitted that in terms of Regulation 29 of the Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017, the Liquidator is required to verify the claims submitted within thirty days from the last date for receipt of claims and may either admit or reject the claim, in whole or in part. It was submitted that according to law, the last date of submission of claims was 12.04.2023. Since there were no creditors of the Company as on the Liquidation Commencement Date, the Liquidator received no claims from the stakeholders.
11. The Applicant further submitted that the assets of the Company have been realized to the extent of Rs. 16,04,617.68 (Rupees Sixteen Lakhs Four Thousand Six Hundred Seventeen and Sixty-Eight Paise only), entirely comprising the bank balance maintained with Kotak Mahindra Bank. It was submitted that these assets were not specifically pledged. It was further submitted that there were no other assets in the Company except the bank balance, and accordingly, no registered valuer was appointed to value the assets of the Company.

12. The Applicant also submitted that in terms of Regulation 30 of the Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017, the Liquidator is required to prepare a list of stakeholders on the basis of claims submitted and accepted under the law. Since no claims were received, the Liquidator was not required to prepare a list of stakeholders. The Applicant has filed an affidavit to that effect.
13. In terms of Regulation 9 of the Voluntary Liquidation Regulations, the Voluntary Liquidator has prepared the preliminary report dated 27.04.2023 and has submitted the same.
14. The Applicant submitted that in terms of Regulation 37(2) of the Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017, in the event of the liquidation process continuing for more than twelve months, the Liquidator is required to hold a meeting of contributories of the corporate person within fifteen days from the end of twelve months from the liquidation commencement date. It was submitted that accordingly, the Liquidator held a meeting of contributories on 26.03.2024. It was further submitted that the Liquidator also prepared the Status Report as per Regulation 37(2)(b) of the Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017, indicating the progress in the liquidation process.
15. As required under regulations, the Voluntary Liquidator had opened a Liquidation account of the Applicant Company with Axis Bank on 15.04.2023 for realization and payment to the creditors and Members.
16. Subsequent to the disbursement of funds to the Creditors and the members of the Applicant Company i.e., a total of Rs. 19,89,637.68/- and after confirming that there was no balance in the Liquidation Account of the Applicant Company maintained with the Axis Bank, the Voluntary Liquidator procured a Liquidation Account Closure letter dated 02.04.2025.

17. Further, in terms of Regulation 38 of the Insolvency and Bankruptcy Board of India (Voluntary Liquidation Process) Regulations, 2017, upon completion of the liquidation process, the Liquidator is required to prepare a Final Report consisting of details showing the receipts and payments pertaining to the liquidation since the Liquidation Commencement Date. Accordingly, the Liquidator has prepared the Final Report and filed the same in e-form Form GNL-2 (SRN: AB2710692) with the RoC.
18. Upon the scrutiny of records, the Voluntary Liquidator is satisfied that the necessary compliances of Section 59 of the Code and other relevant Regulations of the Voluntary Liquidation Regulations, as applicable thereto have been made and the affairs of the Applicant Company have not been conducted in a manner prejudicial to the interest of its members or to the public interest and thus the Applicant Company may be deemed to have been dissolved from the date of submission of this report to this Adjudicating Authority.
19. All the Compliances as per the Code and as per the Voluntary Liquidation Regulations have been complied with. The Affidavit showing compliance with the Code and compliance of the Voluntary Liquidation Regulation (Form-H) has been filed along with the application.

REPORT OF THE REGISTRAR OF COMPANIES:

20. The Registrar of Companies, NCT of Delhi and Haryana, in its report, has submitted that, *“as per data received from various cells in this office, no inquiry / inspection / complaint / legal action has been shown pending against the subject Company.”* It was further stated that the factual status report has been compiled on the basis of records maintained and documents filed by the Applicant Company on the MCA21 portal.
21. The Registrar of Companies, NCT of Delhi and Haryana submitted a factual summary of the compliance status of the Applicant Company, including its date of incorporation, details of its last directors, filing

history of statutory returns, and a record of the forms submitted in connection with the voluntary liquidation process such as Board Resolution and Special Resolution (via Form MGT-14); and Declaration of Solvency and the Final Report under Regulation 38 of the IBBI Regulations (via GNL-2).

22. The Registrar of Companies, NCT of Delhi and Haryana has submitted that, while duly acknowledging that the Insolvency and Bankruptcy Board of India (IBBI) is the competent authority under the Insolvency and Bankruptcy Code, 2016, the present report is being filed solely in compliance with the directions issued by this Adjudicating Authority vide order dated 22.05.2025.

ANALYSIS AND FINDINGS:

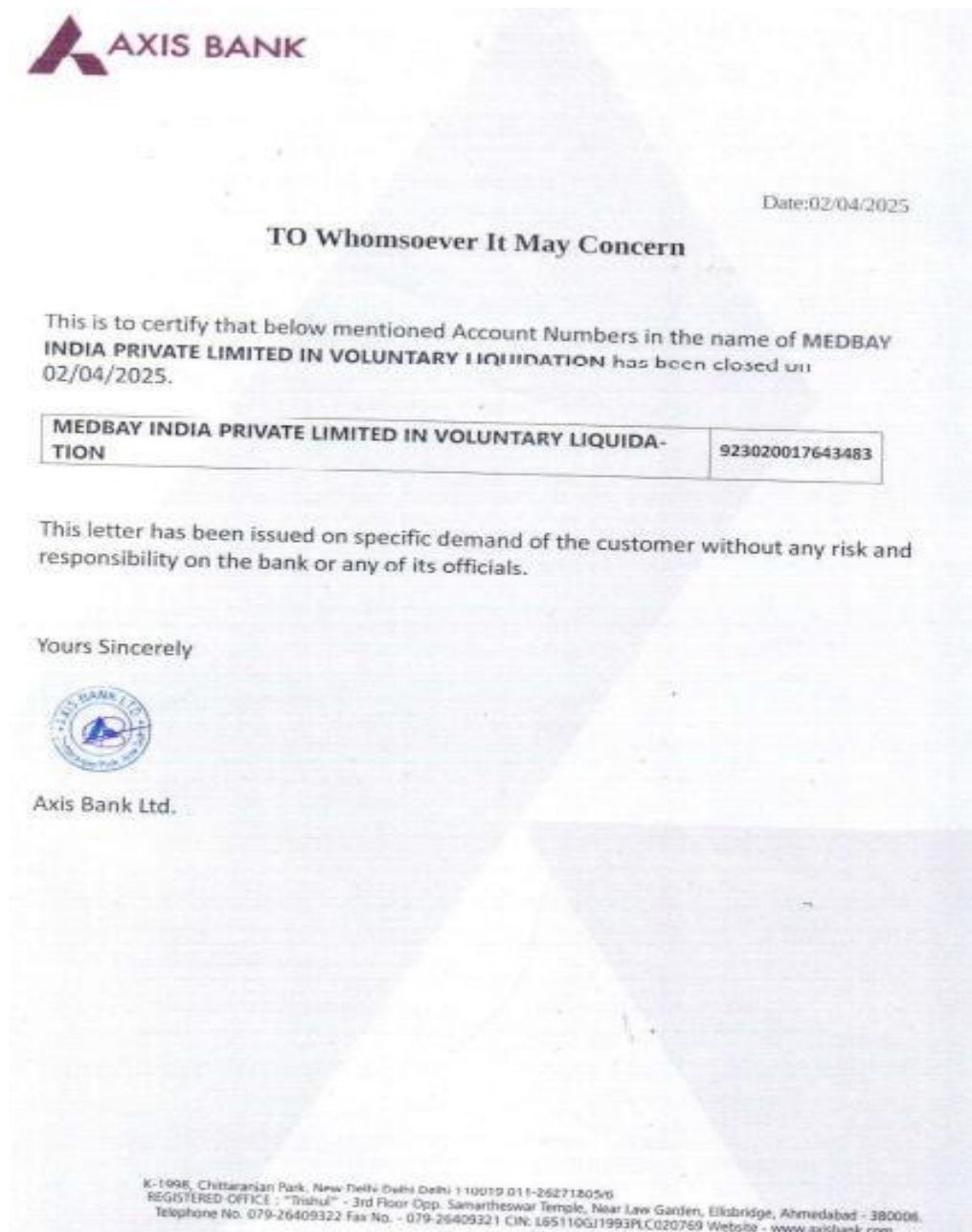
23. In compliance with the directions passed by this Adjudicating Authority vide order dated 22.05.2025, the Voluntary Liquidator, has filed an affidavit of service along with a revised compliance checklist; and the RoC has filed their report.
24. We have considered the submissions made by the Applicant Company and have also perused the material on record. It appears that the affairs of the Applicant Company have been completely wound up and its assets have been completely liquidated and no liabilities have been left unsatisfied. We are satisfied from the documents on record that the Voluntary Liquidation is not with the intent to defraud any person.
25. The Final Report under Regulation 38 of the Voluntary Liquidation Regulations read with Section 59 of the Code stated that:

- “i. The Company does not have any pending litigations which would impact its financial position;*
- ii. The Company did not have any long-term contracts including derivative contracts for which there were any material foreseeable losses;*
- iii. There were no amounts which were required to be transferred to the Investor Education and Protection Fund by the Company.”*

26. A detailed breakup of the distribution made to the stakeholders, as provided in the Final Report as well as the Form-H filed by the Liquidator, is as follows:

Sl. No.	Stakeholders* under section 52 and 53 (1)	Amount Claimed	Amount Admitted	Amount Distributed	Amount Distributed to the Amount Claimed (%)	Remarks
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1.	Realization of Security Interest [Sec. 52(1)(b)]	-	-	-	-	-
2.	Liquidation Cost [Sec. 53(1)(a)]	886040	886040	886040	100%	-
3.	Workmen's Dues [Sec. 53(1)(b)(i)] Debts of Secured Creditors [Sec. 53(1)(b)(ii)]	-	-	-	-	-
4.	Wages and Unpaid Dues to Employees [Sec. 53(1)(c)]	-	-	-	-	-
5.	Debts of Unsecured Financial Creditors [Sec. 53(1)(d)]	-	-	-	-	-
6.	Government Dues + Amount Unpaid following Enforcement of Security Interest [Sec.53(1)(e)]	-	-	-	-	-
7.	Any remaining	-	-	-	-	-
	Debts and Dues [Sec. 53(1)(f)]					
8.	Preference Shareholders [Sec. 53(1)(g)]	-	-	-	-	-
9.	Equity Shareholders [Sec.53(1)(h)]	1103597.68	1103597.68	1103597.68		-
Total		1989637.68	1989637.68	1989637.68		-

27. That following the disbursement of funds to the creditors and members of the Applicant Company, and upon ensuring that no balance remained in the Liquidation Account maintained with Axis Bank, the Voluntary Liquidator obtained a letter dated 02.04.2025 evidencing that the said account stood closed. The said letter has been reproduced below:



ORDER:

28. In light of the above facts and circumstances, the Applicant Company is ordered to be **dissolved** and therefore, **IB-281(ND)/2025 stands disposed of** in accordance with the above directions.
29. The Registry is directed to send the copies of the order forthwith to the Applicant Company represented by its Voluntary Liquidator and its Ld. Counsel for taking further necessary steps.
30. The Voluntary Liquidator of the Applicant Company is further directed to serve a copy of this order upon the Registrar of Companies, NCT of Delhi and Haryana, immediately and, in any case, within fourteen days of receipt of this order.

The Registrar of Companies, NCT of Delhi and Haryana shall take further necessary action upon receipt of a copy of this order.

31. The Voluntary Liquidator is also directed to preserve a physical or electronic copy of the reports, registers and books of accounts referred to in Regulation 8 and Regulation 10 of the Voluntary Liquidation Regulations for at least 8 years as per Regulation 41 of the Voluntary Liquidation Regulations either with himself or with an information utility.
32. A certified copy of this order may be issued, if applied for, upon compliance with all requisite formalities.
33. The Registry is further directed to send a copy of this order to the Insolvency and Bankruptcy Board of India for their record.

Sd/-

(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)